

		The September 17, 2026 status conference is continued to <u>January 21, 2027 at 9:00 a.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
6	Harris v. Orange County Transportation Authority 2022-01284718	<u>Plaintiffs Wayne Harris and Marlene McKinney's Motion for Summary Adjudication</u> Plaintiffs Wayne Harris and Marlene McKinney move for summary adjudication of a claimed issue of duty and against two affirmative defenses asserted by defendant Orange County Transportation Authority (OCTA) and two affirmative defenses asserted by defendant California Department of Transportation (CalTrans). For the following reasons, plaintiffs' motion is denied. A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Cal. Civ. Proc. Code § 437c(f)(1). A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. <i>Id.</i> A motion for summary adjudication "shall proceed in all procedural respects as a motion for summary judgment." <i>Choochagi v. Barracuda Networks, Inc.</i> (2020) 60 Cal.App.5th 444, 453. "The moving party 'bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if [the movant] carries [this] burden of production,' the burden of production shifts to the opposing party 'to make a prima facie showing of the existence of a triable issue of material fact.'" <i>Id.</i> Plaintiffs' complaint alleges two causes of action for inverse condemnation and nuisance. Plaintiffs allege their property located at 17199 Buttonworth Street in Fountain Valley, California has "experienced on-going damage, vibrations and invasion from noise, dust, debris, storm water runoff, among other things, caused by the 405 Freeway construction being carried out by OCTA." Complaint ¶¶ 1, 7. Plaintiffs allege the property "has suffered from continued and expanding cracking, earth movement, vibrations, noise, dust and debris caused by on-going . . . construction," and that the construction has caused widespread cracking along the concrete . . . [c]racking in the home . . . [and] flooding . . . into the backyard." Complaint ¶ 10. <i>Issue Nos. 1 and 2</i>

		Plaintiffs move for summary adjudication of the two following issues: 1. OCTA “has a constitutional duty to pay plaintiffs just compensation because OCTA has admitted that its Interstate 405 improvement project . . . physically damaged plaintiffs’ property”; and 2. CalTrans “has a constitutional duty to pay plaintiffs just compensation because CalTrans has admitted that its [Interstate 405 improvement] project . . . physically damaged plaintiffs’ property.” Citing <i>City of Pasadena v. Superior Court</i> (2014) 228 Cal.App.4th 1228, 1233, plaintiffs assert “[a] public agency has a duty to pay just compensation when it substantially participates “in the planning, approval, construction, or operation of a public project or improvement that proximately caused injury to the plaintiff’s property.”” Brief (ROA 189) 9:17-22; see also <i>id.</i> at 12:26-13:3 (“To trigger the public agency’s duty to pay just compensation in an inverse condemnation action, the plaintiff must show the agency ‘substantially participated in the planning, approval, construction, or operation of a public project or improvement that proximately caused injury to the plaintiff’s property.’ (City of Pasadena, supra, 228 Cal.App.4th at p. 1233”). <i>City of Pasadena</i> does not address a public agency’s alleged “duty to pay just compensation” as an element of an inverse condemnation claim. The portion of <i>City of Pasadena</i> plaintiffs cite states in its entirety: “To state a cause of action for inverse condemnation, the plaintiff must allege the defendant substantially participated in the planning, approval, construction, or operation of a public project or improvement which proximately caused injury to plaintiff’s property.” <i>Id.</i> at 1233. <i>City of Pasadena</i> addresses duty only in the context of the nuisance claim at issue in that case and the defendant’s failure to establish “the nature and extent of its duty of care” to the plaintiff. <i>City of Pasadena</i>, 228 Cal.App.4th at 1237. “To state a claim for inverse condemnation, a plaintiff must allege ‘[1.] a public entity [2.] has taken or damaged their property [3.] for a public use.’” <i>Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.</i> (2024) 102 Cal.App.5th 281, 289. Liability under inverse condemnation principles requires the damage to private property to be substantially caused by an inherent risk presented by the deliberate design, construction, or maintenance of the public improvement. <i>City of Oroville v. Superior Ct.</i> (2019) 7 Cal.5th 1091, 1105. Plaintiffs have not cited any authority standing for the proposition that a “constitutional duty to pay” is an element of an inverse condemnation claim, or that such an alleged duty is “the kind of duty to which the Legislature intended Code of Civil Procedure section 437c, subdivision (f) to apply.” <i>Linden Partners v. Wilshire Linden Associates</i> (1998) 62 Cal.App.4th 508, 519 (stating “an issue of duty” in section 437c(f) applies to negligence claims, an
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insurer's duty to defend, and "if, under the facts and circumstances of a given case, a court finds it appropriate to determine the existence or nonexistence of a duty in the nature of a contractual obligation, it may properly do so by a ruling on that issue presented by a motion for summary adjudication"). In short, although plaintiffs attempt to frame Issue Nos. 1 and 2 as being directed at a proper subject for summary adjudication, plaintiffs do not actually seek summary adjudication of an issue of duty within the meaning of the code. Indeed, plaintiffs' motion papers indicate plaintiffs seek summary adjudication in their favor on the inverse condemnation claim, or several elements thereof. See, e.g., Brief (ROA 189) at 13-14 (discussing elements of inverse condemnation claim); Reply (ROA 247) 8:1-2 ("This motion is about whether there is any liability for inverse condemnation").

As noted above, liability under inverse condemnation principles requires the damage to private property to be substantially caused by an inherent risk presented by the deliberate design, construction, or maintenance of the public improvement. *City of Oroville*, 7 Cal.5th at 1105. Both "inherent risk" and "substantial causation" must be present for a public entity to be liable. *Id.* at 1106. "The inherent risk assessment requires a reviewing court to consider whether the inherent dangers of the public improvement as deliberately designed, constructed, or maintained materialized and were the cause of the property damage." *Id.* "The plaintiff must also establish substantial causation. . . . Liability depends on whether some element of physical, but-for causation is present to link the public improvement and the damage. The damage must be the "'necessary or probable result' of the improvement, or if 'the immediate, direct, and necessary effect' thereof was to produce the damage." [Citation.] Rather than training attention on the mere presence of causation, our cases have focused instead on whether there is proof that the damages 'followed in the normal course of subsequent events' and were 'predominantly' produced by the improvement. [Citation.] At the core of the test is the requirement that -- even in the case of multiple concurrent causes -- the injury to private property is an 'inescapable or unavoidable consequence' of the public improvement as planned and constructed." *Id.* at 1107-08 (italics in original).

Plaintiffs do not address *Oroville* in their opening brief, and, even if plaintiffs had properly noticed a motion for summary adjudication of the inverse condemnation claim, they have not met their burden of establishing no triable issues of material fact exist as to that claim. Plaintiffs' moving papers, including the separate statement, do not sufficiently address, *inter alia*, "inherent risk" or "substantial causation" as discussed in *Oroville*.

On reply, plaintiffs contend *Oroville* is factually distinguishable from this case because *Oroville* involved sewer backup and a property owner who did not install a legally-required backwater valve that would have prevented sewage from entering the plaintiff's building in the event of a sewer main backup. Factual distinctions between *Oroville* and this case are not grounds to conclude the California Supreme Court's ruling regarding the legal analysis applicable to an

inverse condemnation claim does not apply here. *Oroville*, 7 Cal.5th at 1111 (“When public improvements damage private property, property owners not compensated earlier may seek recovery through inverse condemnation claims. But to succeed, such claims must demonstrate more than just a causal link — however tenuous — between the existence of the public improvement and the property damage. Instead, inverse condemnation liability depends on whether the property damage was the probable result or necessary effect of an inherent risk associated with the design, construction, or maintenance of the relevant public improvement”); *see also Simple Avo Paradise Ranch*, 102 Cal.App.5th at 299 (“The California Supreme Court recently examined the principles underlying an inverse condemnation claim in *Oroville*”). Plaintiffs’ motion for summary adjudication of Issue Nos. 1 and 2 is denied.

Issue Nos. 3, 4, 5 and 6

Plaintiffs also seek summary adjudication of two affirmative defenses alleged by OCTA and two affirmative defenses alleged by CalTrans. Specifically, plaintiffs seek summary adjudication of OCTA’s second affirmative defense of “no damages attributable to defendant” and sixteenth affirmative defense of “lack of proximate cause,” and summary adjudication of CalTrans’ eighth affirmative defense of “no legal cause” and twenty-eighth affirmative defense of “no taking.” (For unexplained reasons, OCTA filed two answers to plaintiffs’ complaint. ROA 15, 20. The first answer alleges 34 affirmative defenses; the second answer alleges 40 affirmative defenses. Plaintiffs’ motion appears directed at OCTA’s second answer (ROA 20).) Plaintiffs argue summary adjudication should be granted in their favor on these four affirmative defenses because OCTA and CalTrans have admitted the project physically damaged plaintiffs’ property.

OCTA’s second affirmative defense (entitled “no damages attributable to defendant”) states: “Plaintiff’s claims are barred because Plaintiff sustained no cognizable damages attributable to Answering Defendant.” ROA 20 (at 2).

OCTA’s sixteenth affirmative defense (entitled “lack of proximate cause”) states: “Answering Defendant is informed and believes, and thereupon alleges that any alleged conduct or omission by Answering Defendant was not the cause in fact, or proximate cause, of any injuries or damages alleged by Plaintiff. This defense is alleged in the alternative and does not admit any of the allegations contained in the Complaint.” ROA 20 (at 5).

CalTrans’ eighth affirmative defense (entitled “no legal cause”) states: “CalTrans alleges that its acts, omissions, and conduct were not the legal cause of any taking, damaging, injury, loss, or harm alleged to have been sustained by the Plaintiffs.” ROA 22 (at 3).

Caltrans’ twenty-eighth affirmative defense (entitled “no taking”) states: “The acts or omissions of CalTrans, if any, did not amount to a taking or damaging within the meaning of Section 19 of Article

I of the California Constitution or of the Fifth Amendment of the United States Constitution.” ROA 22 (at 7).

As stated above, summary adjudication as to one or more affirmative defenses may be granted if the moving party establishes “there is no merit to an affirmative defense.” Civ. Proc. Code § 437c(f)(1). “Generally, a party must raise an issue as an affirmative defense where the matter is not responsive to essential allegations of the complaint. [Citations.] Thus, where a defendant relies on facts not put in issue by the plaintiff, the defendant must plead such facts as an affirmative defense. [Citation.] ‘Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not “new matter,” but only a traverse.’” *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, 698.

Applying these concepts, and notwithstanding that OCTA and CalTrans labeled them as such, the court questions whether OCTA’s second and sixteenth affirmative defenses and CalTrans’ eighth and twenty-eighth affirmative defenses are in fact affirmative defenses, as each appears to assert that essential allegations of plaintiffs’ complaint (causation, damages) are not true. Thus, whether these “affirmative defenses” may properly be the subject of a summary adjudication motion is questionable.

That being said, even construing each as a proper affirmative defense, plaintiffs’ motion is still denied because plaintiffs do not identify the elements of each defense as to which they seek summary adjudication and have not shown that one or more elements of each defense cannot be established. The court therefore cannot conclude that plaintiffs have demonstrated that one or more elements of each defense cannot be established. Plaintiffs’ motion for summary adjudication of Issue Nos. 3, 4, 5 and 6 is denied.

Plaintiffs’ Request for Judicial Notice was not material to the disposition of the motion.

Defendants to give notice.

Defendants Orange County Transportation Authority and California Department of Transportation’s Motion for Summary Judgment or, in the alternative, Summary Adjudication

Defendants Orange County Transportation Authority (OCTA) and the California Department of Transportation (CalTrans) move for summary judgment or, in the alternative, summary adjudication against plaintiffs Wayne Harris and Marlene McKinney’s complaint. For the following reasons, defendants’ motion is denied.

A defendant seeking summary judgment bears its burden of showing that a cause of action has no merit if the defendant shows that one or more elements of the cause of action cannot be established, or that the defendant has a complete defense to the cause of action. Cal. Civ. Proc. Code § 437c(p)(2); *Aguiar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-51.

If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 840. If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. Cal. Civ. Proc. Code § 437c(p)(2); *Aguilar*, 25 Cal.4th at 850-51.

A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Cal. Civ. Proc. Code § 437c(f)(1). A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. *Id.*

A motion for summary adjudication "shall proceed in all procedural respects as a motion for summary judgment." *Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 453. "The moving party 'bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if [the movant] carries [this] burden of production,' the burden of production shifts to the opposing party 'to make a prima facie showing of the existence of a triable issue of material fact.'" *Id.*

Plaintiffs' complaint alleges two causes of action for inverse condemnation and nuisance. Plaintiffs allege their property located at 17199 Buttonworth Street in Fountain Valley, California has "experienced on-going damage, vibrations and invasion from noise, dust, debris, storm water runoff, among other things, caused by the 405 Freeway construction being carried out by OCTA." Complaint ¶¶ 1, 7. Plaintiffs allege the property "has suffered from continued and expanding cracking, earth movement, vibrations, noise, dust and debris caused by on-going . . . construction," and that the construction has caused widespread cracking along the concrete . . . [c]racking in the home . . . [and] flooding . . . into the backyard." Complaint ¶ 10.

"To state a claim for inverse condemnation, a plaintiff must allege '[1.] a public entity [2.] has taken or damaged their property [3.] for a public use.'" *Simple Avo Paradise Ranch, LLC v. Southern California Edison Co.* (2024) 102 Cal.App.5th 281, 289. Liability under inverse condemnation principles requires the damage to private property to be substantially caused by an inherent risk presented by the deliberate design, construction, or maintenance of the public improvement. *City of Oroville v. Superior Ct.* (2019) 7 Cal.5th 1091, 1105.

The elements of a private nuisance action are (1) the plaintiff must prove an interference with its use and enjoyment of its property; (2) the invasion of the plaintiff's interest in the use and enjoyment of the land must be substantial, i.e., it caused the plaintiff to suffer substantial actual damage, (3) the interference with the protected interest must not only be substantial, it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land. *Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1176.

Summary adjudication

Defendants' Notice of Motion states that they seek, as an alternative to summary judgment, summary adjudication of four issues:

1. Whether defendants are entitled to summary adjudication of plaintiffs' first cause of action for inverse condemnation, on the grounds that plaintiffs cannot establish substantial causation or inherent risk as required under *City of Oroville v. Superior Court*, 7 Ca1.5th 1091 (2019), and *Belair v. Riverside County Flood Control District*, 47 Ca1.3d 550 (1988);
2. Whether defendants are entitled to summary adjudication of plaintiffs' first cause of action for inverse condemnation, on the grounds that plaintiffs' claims based on noise, dust, fumes, shocks, and vibrations are independently noncompensable as a matter of law under *Lombardy v. Peter Kiewit Sons' Co.*, 266 Cal.App.2d 599 (1968), and *People ex rel. Dept of Pub. Works v. Symons*, 54 Ca1.2d 855 (1960);
3. Whether defendants are entitled to summary adjudication of plaintiffs' second cause of action for nuisance, on the grounds that Civil Code section 3482 provides complete statutory immunity for construction activities expressly authorized by Public Utilities Code section 130240, Public Contract Code section 6820 et seq., and Streets and Highways Code sections 90 and 215.5; and
4. Whether defendants are entitled to summary adjudication of plaintiffs' second cause of action for nuisance, on the grounds that plaintiffs cannot establish the essential elements of private nuisance under CACI No. 2021, including that defendants' conduct was intentional and unreasonable, or unintentional but negligent or reckless, and that the gravity of any alleged harm outweighs the substantial public benefit of the 1-405 Improvement Project.

Notice of Motion (ROA 193) 2:23-3:15.

California Rule of Court 3.1350(b) states in pertinent part: "If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty

		must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” Cal. R. Ct. 3.1350(b). California Rule of Court 3.1350(d) states: (1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify: (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion. (2) The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion. Cal. R. Ct. 3.1350(d). Defendants’ separate statement does not comply with rule 3.1350(b). ROA 163. The separate statement states defendants “submit the following Separate Statement of Undisputed Material Facts in support of [their] Motion for Summary Judgment on the complaint filed by Plaintiffs . . . as follows: . . .” ROA 163 (at 2:5-7). Forty-six allegedly undisputed material facts follow. <i>Id.</i> The summary adjudication issues identified in defendants’ notice of motion are not “repeated, verbatim, in the separate statement of undisputed material facts” nor, in contravention of rule 3.1350(d), does the separate statement separately identify “each cause of action . . . that is the subject of the motion,” and “each supporting material fact . . . with respect to the cause of action . . . that is the subject of the motion.” Cal. R. Ct. 3.1350(d). Moreover, the materiality of the 46 allegedly undisputed material facts to each of the causes of action is unclear and unexplained. For example, the court cannot discern the materiality of Material Fact Nos. 43, 44, 45 or 46 to the causes of action on which defendants seek summary judgment or the issues of which defendants seeks summary adjudication. “The paragraphs in a separate statement should be limited to facts that address the elements of a cause of action or an affirmative defense.” <i>Beltran v. Hard Rock Hotel Licensing, Inc.</i> (2023) 97 Cal.App.5th 865, 875; <i>see also</i> Cal. R. Ct. 3.1350(d)(2) (“The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion”). Preparation of a proper separate statement is not a pedantic exercise. “The separate statement serves two important functions in a summary judgment proceeding: It notifies the parties which material facts are at issue, and it provides a convenient and expeditious vehicle permitting the trial court to hone in on the truly disputed facts.” <i>Id.</i> A separate statement that lists 46 undifferentiated facts in relation to two different causes of action and four summary adjudication issues is neither convenient nor expeditious. The court identified similar
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defects in defendants' separate statement filed in support of a earlier motion in this case. See 5/8/25 Order (ROA 119).

Perhaps in an attempt to cure (some of) the above deficiencies, defendants filed a "Notice of Errata re Defendants' Separate Statement of Undisputed Material Facts and Memorandum of Points and Authorities in Support of Motion for Summary" on June 16, 2026. ROA 212. The Notice of Errata states "[t]he original Separate Statement of Undisputed Material Facts and the Memorandum of Points and Authorities filed in support of Defendants' Motion for Summary Judgment contained a formatting error in the SSUMF and the citations thereto," and that defendants "file this errata to correct that formatting error. No substantive changes have been made to any argument or to the substance of any fact or citation containing in the original filing." ROA 212.

As an initial matter, contrary to defendants' claim in the reply that the Notice of Errata "was timely filed" (ROA 242 at 4:4), it was late-filed as it was filed and served less than 81 days before the initial August 27, 2026 hearing date. See Civ. Proc. Code § 437c(a)(2). In addition, contrary to defendants' claim that "no substantive changes" were made to the separate statement, the June 16, 2026 separate statement contains 58 allegedly undisputed material facts, not 46. Furthermore, the late-filed separate statement still does not comply with Rule 3.1350, as it identifies 2 issues for summary adjudication, not 4, and neither issue is a verbatim statement of any summary adjudication issue stated in the Notice of Motion. For all of these reasons, the court declines to consider defendants' late-filed Notice of Errata.

Due to the deficiencies in defendants' separate statement discussed above, defendants' motion for summary adjudication is denied. See also *Pierson v. Helmerich & Payne Int'l Drilling Co.* (2016) 4 Cal.App.5th 608, 617 ("A motion for summary judgment or summary adjudication will be defective if the moving party fails to (1) accurately identify the facts that are material to the legal theory upon which the motion is based; (2) actually include those material facts in the separate statement; and (3) reference evidence establishing, either directly or by inference, each material fact the moving party claims is undisputed"). It is also denied, however, because plaintiffs have submitted evidence disputing many of the facts in defendants' separate statement. See, e.g., Plaintiffs' Opposing Separate Statement (ROA 222) Nos. 17, 18, 19, 20, 22, 33, 34, 37, 39, 41, 42. The separate statement "effectively concedes the materiality of whatever facts are included. Thus, if a triable issue is raised as to any of the facts in [the] separate statement, the motion must be denied[.]" *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 (italics in original) (citation omitted).

Summary judgment

As defendants' summary adjudication motion is denied as discussed above, to prevail on their motion, defendants must demonstrate they are entitled to summary judgment on both of plaintiffs' causes

		of action. With respect to the inverse condemnation claim, defendants argue plaintiffs cannot establish substantial causation because (i) "a majority" of the damages plaintiffs attribute to the freeway construction project allegedly existed before construction began, and (ii) plaintiffs cannot establish the damages were substantially caused by an inherent risk presented by the deliberate design, construction or maintenance of the freeway project. Defendants also argue plaintiffs cannot recover for damages resulting from noise, dust, fumes, shocks or vibrations. Plaintiffs have demonstrated triable issues of material fact on the inverse condemnation claim. See, e.g., Plaintiffs' Opposing Separate Statement (ROA 222) Nos. 17, 18, 19, 20, 22, 33, 34, 37, 39, 41, 42. Among other evidence, plaintiffs presented the declaration of their civil and geotechnical engineering expert, Mohammad Joolazadeh, in which he opines that the freeway project "caused physical damage to 'each back yard wall'" at plaintiffs' property, that "among other things, the project construction slope facing the Subject Property places a surcharge upon the backyard wall which has adversely affected the structural integrity of the wall," and that the "construction of this slope has caused mixture of water and soil from the public improvement to enter into the backyards through the porous masonry block wall due to lack of installation of proper drainage control devices at the base of the slope." Joolazadeh Decl. (ROA 228) ¶ 6. Plaintiffs also presented defendants' responses to requests for admissions in which defendants admitted their "inspection of the Subject Property before this lawsuit found damage to the Subject Property substantially caused by the Project," and "the Project physically damaged each back yard wall at the Subject Property." Kehoe Decl. (ROA 228, 234) Ex. 11 (Response to RFA Nos. 2, 17) & Ex. 12 (Response to RFA Nos. 2, 17). In sum, plaintiffs have demonstrated material disputed factual issues in this factually intensive case. Defendants' unopposed Request for Judicial Notice (ROA 167) of Exhibits A, B, C, D and E, and Exhibit 6 is granted. Plaintiffs' Evidentiary Objections to the Jorgenson, Kahzeni and Thompson Declarations (ROA 230, 231, 232) are overruled. Defendants' Evidentiary Objections to the Joolazadeh and Vahid Declarations (ROA 244, 245) are overruled. Plaintiffs to give notice.
7	Hernandez v. Stanley G. Alexander, Inc. 2022-01291342	<u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for final approval of a \$440,000 class action and PAGA settlement. Subject to plaintiff's submission of the declaration described below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff;